

**BANARAS HINDU UNIVERSITY**

B.Com. (Hons.) FMM — Semester III Examination, 2013-14

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**Paper No. BCF-215: Corporate Laws**

Time: 3 Hours

Maximum Marks: 70

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*Instructions: Answer all questions. All questions carry equal marks (14 marks each).***Question 1.**

“A company is an artificial person created by law having a separate entity with a perpetual succession and a common seal.” Discuss this statement and explain the characteristics of a company. [14]

**OR**

Distinguish between the following: [7+7]

- (a) Private company and Public company
  - (b) Holding company and Subsidiary company
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**Question 2.**

Explain the various stages involved with formation of a company under the Companies Act, 1956. [14]

**OR**

Discuss the functions and legal position of a promoter. [14]

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**Question 3.**

What are the main clauses in Memorandum of Association of a company limited by shares? Describe the procedure of altering the object clause. [14]

**OR**

What is Articles of Association? Explain the importance and contents of Articles of Association. [14]

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**Question 4.**

Discuss the qualifications and duties of director of a company. [14]

**OR**

Explain the legal position of directors of a company. Describe their powers and liabilities. [14]

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**Question 5.**

How is the secretary in a company appointed? Discuss the duties of whole-time and part-time secretary. [14]

**OR**

Write short notes on any two of the following:

[7+7]

- (a) Professionalisation of company secretaryship in India
- (b) Issue and forfeiture of shares
- (c) Dividend